NORTH TEXAS TOLLWAY AUTHORITY

Request for Bid (RFB)
for
Janitorial Services for Gleneagles Facilities
Solicitation Number: 06283-GEC-00-GS-MA

Date Issued	May 30, 2025
Pre-Bid Conference ***Microsoft Teams Virtual Meeting Details:***	June 11, 2025 at 3:00 p.m. CT Meeting ID: 290 650 195 510 8 Passcode: 6VV3aP9u Phone# +1 469-214-9499 Conf.ID: 975 724 220#
Site Visit	June 13, 2025 at 9:00 a.m. 5900 West Plano Parkway, Customer Service Center, Plano, Texas 75093
Bid Question Deadline Submit Questions via **www.nttamarketplace.org**	July 1, 2025 at 5:00 p.m. CT
Bid Due Date Submit Bids via **www.nttamarketplace.org**	July 9, 2025 at 11:00 a.m. CT
Bid Opening Date ***Microsoft Teams Virtual Meeting Details:***	July 9, 2025 at 3:30 p.m. CT Meeting ID: 261 381 000 419 4 Passcode: jb3oT6Yi Phone# +1 469-214-9499 Conf.ID: 610 179 948#
Solicitation Contact Person	Steve Lacasse slacasse@ntta.org
Contract Term	4 years

Project Description:

Janitorial Services for Gleneagles Facilities at 5900 West Plano Parkway, Plano, Texas 75093.

NOTE:

To be considered for this procurement, each Bidder MUST include with their Bid Sheet***, all REQUIRED documents***. Bidders are encouraged to upload their bids to NTTA's Marketplace (https://www.nttamarketplace.org), no later than the date and time identified above as the "Bid Due Date". Alternatively**, if electronic submittal is not possible, a physical response may be submitted to the above address.**

When responding, be certain to check the CONFIDENTIAL check box for each uploaded document. You must do so for each document that you would like to designate as confidential. If you fail to check this box, such document(s) will be viewable by the general public.

NIGP Code(s)

910-39	958-63

D/M/WBE Goal 20%

TABLE OF CONTENTS

I. INTRODUCTION 3
A. Background 3
B. NTTA Mission Statement and Values 3
II. GENERAL INFORMATION 3
A. Contract Term 3
B. Property of North Texas Tollway Authority 4
C. Award Limitations 4
D. Language, Words Used Interchangeably 4
III. INSTRUCTIONS TO BIDDERS 4
A. Confidentiality and Non-Disclosure Statement 4
B. Pre-Bid Conference 4
C. Registration, Acknowledgment, and Addendums 5
D. Inquiries 5
IV. SUBMITTAL OF BIDS 6
C. Lowest Responsible Bidder 7
D. Determination of Non-Responsible Bidder 7
E. Determination of Non-Responsive Bidder 8
F. Rejection of Bids 9
G. Withdrawing a Bid 9
V. BID AWARD 9
VI. TERMS AND CONDITIONS 10
A. Acceptance of Evaluation and Selection Procedures 10
B. Procurement Policy, RFB, and Applicable Law 10
C. Confidential Information and Texas Public Information Act 10
D. Award Non-Exclusive 11
E. Third-Party "Remit To" 11
F. Tax Exempt Authority 11
G. Incurring Costs 11
H. Disclosure of Interested Parties 11
I. Hold Harmless Agreement 12
J. Equal Opportunity 12
K. Disclaimer of Liability 12
L. Licenses/Certificates 13
M. Notice of Impropriety 13
N. Force Majeure 13
O. Procurement Protests 13
VII. APPENDICIES 14
A. Scope of Work 14
B. Bid Sheet 14
C. Required Forms 14
D. Business Information Form 14
E. Insurance Requirements 14
F. Business Diversity Program 14
G. Form of Contract 14

I. INTRODUCTION

The North Texas Tollway Authority (NTTA) invites experienced and qualified companies to submit bids (each, a "Bid") to provide the Janitorial Services for Gleneagles Facilities (the "Project") to NTTA in accordance with the terms of this RFB. A company that seeks to be awarded the contract ("Contract") for the Project under this RFB will be referred to as a Bidder.

This RFB includes the Scope of Work and other requirements for the Project that NTTA has determined are pertinent to the preparation of a Bid. Regardless of whether deliverables under this procurement comprise goods, services, or both, all deliverables to be provided under the Contract will be referred to in this RFB as "goods and services."

NTTA intends to award a Contract to the lowest responsible Bidder. The form of the Contract NTTA intends to utilize for this procurement is included with this RFB. However, NTTA reserves the right to modify the attached form of the Contract as NTTA deems necessary or advisable for particular requirements of the Project.

A. Background

NTTA is a regional tollway authority governed by Chapter 366 of the Texas Transportation Code authorized to acquire, construct, maintain, repair, and operate turnpike projects in the North Texas region. NTTA serves its member counties of Collin, Dallas, Denton, and Tarrant and is responsible for the NTTA System of toll roads in the region, including Dallas North Tollway, President George Bush Turnpike, Sam Rayburn Tollway, SH 360, Addison Airport Toll Tunnel, Lewisville Lake Toll Bridge, Chisholm Trail Parkway, and Mountain Creek Lake Bridge. NTTA is governed by a nine-member board of directors (Board) with two members appointed by each of the four NTTA member counties. A ninth member is appointed by the Governor of Texas. For more information, a list of the individuals that currently serve on the NTTA Board of Directors is provided on NTTA's website at www.ntta.org.

B. NTTA Mission Statement and Values

To provide a safe and reliable toll road system, increase value and mobility options for our customers, operate the Authority in a businesslike manner, protect our bondholders, and partner to meet our region's growing need for transportation infrastructure.

II. GENERAL INFORMATION

A. Contract Term

The Contract will become effective upon its final execution by both parties and satisfaction of the requirements of Section 2252.908 of the Texas Government Code and all other applicable legal requirements. The Term of the Contract is 4 years.

B. **Property of North Texas Tollway Authority**

Subject to the provisions of this RFB concerning Confidential Information, all written and electronic correspondence, appendices, photographs, reports, printed material, tapes, disks, designs, and other graphic and visual aids submitted to NTTA during this procurement will become the property of NTTA upon delivery to NTTA and will not be returned to the submitting parties.

C. **Award Limitations**

None.

D. **Language, Words Used Interchangeably**

The words "shall," "must," and "will" are equivalent in this RFB and indicate a mandatory requirement or condition, the material deviation from which will not be waived by NTTA. A deviation is material if, at the sole discretion of NTTA, the deficient response is not in substantial accord with this RFB's mandatory condition requirements. The words "should" and "may" are equivalent in the RFB and indicate very desirable conditions or requirements but are permissive in nature. Deviation from, or omission of, such a desirable condition or requirement will not in and of itself cause automatic rejection of a Bid but may result in the Bid being considered as not in the best interest of NTTA.

III. INSTRUCTIONS TO BIDDERS

A. **Confidentiality and Non-Disclosure Statement**

Each Bidder agrees that any information accessed or gained by it in the course of the procurement under this RFB or, if applicable, in performance of duties under the Contract will be maintained in confidence and will not be released, discussed, or made known to any party or parties for any reason whatsoever, except as required to perform the duties required or where disclosure is required by law or mandated by a court of law.

Each Bidder must execute a "Confidentiality and Non-Disclosure Statement" and return it to NTTA. The Confidentiality and Non-Disclosure Statement is located under the REQUIRED FORMS section of this RFB (Appendix C).

B. **Pre-Bid Conference**

A pre-bid conference will be conducted for this solicitation and, it will be open to the public to attend. The purpose of the conference is to review the scope and requirements of this RFB and allow interested Bidders to ask questions.

At least one (1) representative from each firm that intends to submit a Bid as a Bidder is encouraged to attend by calling to join the pre-bid conference Microsoft Teams Meeting. See cover page for details.

C. **Registration, Acknowledgment, and Addendums**

A Bidder must complete vendor registration and acknowledge this RFB through NTTA Marketplace (www.nttamarketplace.org) in order to participate in this solicitation. Acknowledgement ensures that the Bidder receives notifications regarding the solicitation. This includes, but is not limited to, notifications advising Bidder of addendums, amendments, and clarifications to this RFB (each, an "Addendum"). Bidders should acknowledge each Addendum, if any, to this RFB.

If NTTA issues an Addendum to this RFB (whether a change to the solicitation specifications or any other modification) after a Bid has already been submitted, the Bidder, at its option, may access, modify, and resubmit its Bid to take such Addendum into account. Any submitted sealed Bid may be updated prior to the closing date/time for submission of Bids as set out in this RFB. A Bidder's failure to update and resubmit a Bid following the issuance of an Addendum will signify the Bidder's election to leave its Bid unmodified.

D. **Inquiries**

It is the Bidder's responsibility to obtain clarification of any information contained herein. Questions regarding any aspect of this procurement are to be submitted via the solicitation's Q&A section on NTTA Marketplace no later than the Bid Question Deadline shown on the cover page of this RFB. All clarifications and answers to questions will be addressed in writing and posted online as an addendum to this RFB. Statement(s) regarding the meaning or intent of the contents of this RFB by any person other than the Solicitation Contact Person listed on the cover page of this RFB are unauthorized, invalid, and cannot be relied upon.

The Solicitation Number must be referenced in all correspondence pertaining to this solicitation.

Except for any meeting(s) specifically authorized by the Solicitation Contact Person (or designee) as part of the Bid evaluation during the solicitation process, there must be no contact regarding this RFB between a Bidder's owners, officers, directors, employees, agents, contractors, subcontractors, or other parties acting on a Bidder's behalf and any NTTA Board member, employee, agent, or consultant, other than the Solicitation Contact Person.

Notwithstanding this prohibition on contact, Bidder may reach out to NTTA's Senior Director of Procurement Services and Business Diversity regarding a solicitation or NTTA's Business Diversity Department regarding questions and/or clarifications about business diversity requirements for a solicitation. A Bidder's failure to comply with this provision will be grounds for NTTA's disqualification of a Bidder and rejection of its Bid.

IV. SUBMITTAL OF BIDS

To be considered for this procurement, each Bidder must include with their Bid Sheet all required documents and UPLOAD them on NTTA Marketplace (www.nttamarketplace.org), no later than the date and time identified on the cover page as the "Bid Due Date".

A. Important Submittal Requirements

1. NTTA is not responsible for Bids received but not clearly marked. It will be the responsibility of each Bidder to upload its Bid Sheet to NTTA at the above listed website before or by Bid Due Date. Late Bids will not be accepted.

2. NTTA is not responsible for delays caused by any other means of delivery employed by the Bidder. Similarly, NTTA is not responsible for, and will not open, any Bids received later than the date and time indicated above.

3. NTTA reserves the right, in its sole discretion, to waive any technicality in a response to this RFB, provided such action is in the best interests of NTTA. Where NTTA waives minor technicalities in a Bid, such waiver does not modify the RFB requirements or excuse the Bidders from full compliance with the RFB. Notwithstanding the waiver of any minor technicalities, NTTA holds all Bidders to strict compliance with the RFB.

4. NTTA reserves the right, in its sole discretion, to interrupt, postpone, delay, or cancel this solicitation at any time.

B. Important Electronic Marketplace Vendor Response Guide

To be considered a responsive and responsible Bidder, it is important to read and follow instructions listed in the electronic "Marketplace Vendor Response Guide" located on NTTA Marketplace (www.nttamarketplace.org). The following is an important task to remember:

NOTE:

When responding, be certain to check the ***Confidential*** check box for each uploaded document. You must do so for each document that you would like to designate as confidential. If you fail to check this box, such document(s) will be viewable by the general public.

NOTE: Bidder must complete and fill out the label below, with the "Solicitation Contact Person" and "Solicitation Number" identified on the cover page of this solicitation.

FROM: NAME OF THE COMPANY – Vendor Name

TO: Procurement Department – Solicitation Contact Person
North Texas Tollway Authority
5900 West Plano Parkway, Suite 100
Plano, TX 75093

RFP # 06283-GEC-00-GS-MA – Solicitation Number

C. **Lowest Responsible Bidder**

Under NTTA's Procurement Policy and this RFB, the "lowest responsible Bidder" is the Bidder who submits a Bid to provide the requested goods and services at a cost that is lower than all other Bids from responsible Bidders and which meets other requirements of the NTTA.

In determining the lowest responsible bidder, NTTA may consider: (a) the purchase price; (b) the reputation of the Bidder and of the Bidder's goods or services; (c) the quality of the Bidder's goods or services; (d) the extent to which the goods or services meet NTTA's needs; (e) the Bidder's past relationship with NTTA; (f) the Bidder's compliance with NTTA's Business Diversity Policy and with other goals and policies of, or binding on, NTTA, if any, regarding the participation by W/M/DBE; (g) the total long-term cost to NTTA to acquire the Bidder's goods or services; and (h) any relevant criteria specifically listed in this RFB. Without limiting the foregoing, any Bidder that NTTA determines is non-responsible or non-responsive will not be deemed the lowest responsible Bidder.

D. **Determination of Non-Responsible Bidder**

NTTA will not consider the Bid of a Bidder NTTA determines to be non-responsible. NTTA may deem a Bidder non-responsible if:

1. NTTA has reason to believe collusion exists among the Bidder and other Bidders.

2. The Bidder, any subcontractor, supplier, or the surety on any bond given, or to be given by the Bidder, is in litigation with NTTA or with Collin, Dallas, Denton, Tarrant, Ellis, or Johnson counties or any cities in those counties (collectively, "Service-Area Entities"), or such litigation is contemplated or imminent, in the sole opinion of NTTA.

3. The Bidder is in default on any existing contract with a Service-Area Entity or defaulted on a previous contract with a Service-Area Entity.

4. The Bidder or a proposed subcontractor thereof has failed to disclose a potential conflict of interest or is discovered to have a conflict of interest, by law or policy, as determined by NTTA.

5. The Bidder, a proposed subcontractor thereof, or an individual officer or owner of the Bidders or company comprising a partner, member, or affiliate of the Bidder or any proposed subcontractor of a Bidder is under criminal indictment or been convicted of a criminal offense.

6. The Bidder or any firm comprising a partner, member, or affiliate of the Bidder or any proposed subcontractor of a Bidder (collectively, with Bidder, the Bidder Team) has received compensation from NTTA to participate in the preparation of this RFB, including, but not limited to, any component of the Scope of Work.

7. Any employee, consultant, or agent of any member of the Bidder's Team participated in the preparation of this RFB, including, but not limited to, any component of the Scope of Work (any such person being referred to as a Screened Person).

    a. However, if (i) no member of the Bidder's Team received compensation from NTTA to participate in the preparation of this RFB (refer to item 6 above), and (ii) NTTA is promptly informed of a Screened Person's employment with a member of a Bidder's Team, a Bidder will not be deemed non-responsible if the Bidder demonstrates to NTTA's satisfaction that a screening procedure exists to ensure that at all times before NTTA's execution of the Contract (a) the Screened Person has not participated in the preparation of the Bid and (b) no person participating in the preparation of the Bid has discussed with or received from the Screened Person information about this RFB, including, but not limited to, any component of the Scope of Work.

    b. Bidder must inform NTTA in writing promptly after it receives this RFB, of any Screened Person's employment with a member of the Bidder's Team. If at a later date a Screened Person is employed by a member of the Bidder's Team, written notice of such employment must be given to NTTA promptly upon the Screened Person's employment. Failure to provide such written notice may result in Bidder being deemed Non-Responsible.

8. The Bidder is not eligible to be awarded the Contract under applicable law or NTTA's Procurement Policy, which may be found online at NTTA's website, ntta.org (currently under "Policies" in the "Who We Are" section).

E. **Determination of Non-Responsive Bidder**

NTTA may disqualify a Bid as non-responsive and it shall not be considered for reasons including but not limited to the following:

1. All elements of the Bid required under this RFB are not included or all requirements for submission described under "Submission of Bids" are not strictly followed.

2. The Bid was received after the time limit for receiving Bids.

3. The Bid is not signed.

4. Bidder does not register with NTTA Marketplace or fails to acknowledge this solicitation or any Addendums.

F. **Rejection of Bids**

Procurement Services will automatically reject any Bid that is submitted after the Bid Due Date listed on the cover page of this RFB, and return it unopened. Until a Contract is executed, NTTA reserves the right to reject any or all Bids, to waive technicalities, to re-advertise, to decline to proceed or to otherwise proceed with this procurement by other method(s) allowed by law and in the best interest of NTTA.

G. **Withdrawing a Bid**

Bidder, by submitting a Bid, warrants and guarantees that the Bid has been carefully reviewed and checked and that it is in all respects true, accurate, and free of mistakes. However, a Bidder has a right to withdraw a Bid prior to the Bid Due Date.

To withdraw its Bid, Bidder must submit a request to withdraw its Bid in writing via email to the Director of Procurement Services, Danielle Thompson, at dthompson@ntta.org>. The written request to withdraw a Bid must state the reason for the withdrawal request. A Bid for which withdrawal is properly requested prior to Bid Due Date will be returned to the Bidder unopened.

A Bidder may not withdraw its Bid after the Bid Due Date without NTTA's express written consent. Bidders acknowledge that for a Bid withdrawn after the Bid Due Date, (1) NTTA may pursue any security, such as a bid bond, given by the Bidder for such withdrawn Bid and (2) the withdrawn Bid will not be eligible to be reinstated for this RFB.

V. BID AWARD

The Bidder that NTTA Procurement Services identifies as the lowest responsible Bidder will be the "apparent low bidder," and NTTA will submit the Contract to the apparent low bidder. When the apparent low bidder unconditionally agrees to execute, deliver, and perform the Contract and submits or has unconditionally agreed to submit (a) all required bonds, insurance, and other items required under this RFB and (b) the Contract, the Contract will then be approved and signed by appropriate parties.

The successful Bidder will assume total responsibility for all obligations under the Contract. Further, NTTA will consider the successful Bidder to be the sole point of contact with regard to contractual matters, including payment of all charges resulting from the Contract. No subcontractor will be paid directly by NTTA. The Bidder will be solely responsible for the success of any portion of and the entire Project under this RFB.

Unless expressly stated otherwise, all Bids shall be considered valid and in effect until the Bid evaluation, award, and Contract execution process is completed (estimated 60 – 180 days).

VI. TERMS AND CONDITIONS

A. Acceptance of Evaluation and Selection Procedures

Each Bidder represents that it (1) has carefully examined this RFB, including all attachments hereto, and (2) does not object to the procedures and processes as described in this RFB, for evaluating and selecting the lowest responsible Bidder for this Procurement or for the award and execution of the Contract. No exceptions to the terms and conditions of the Contract will be accepted by NTTA. Any exceptions submitted by Bidder with its Bid will be disregarded, and NTTA will consider Bidder's Bid as submitted for use with the form Contract attached hereto without any changes.

B. Procurement Policy, RFB, and Applicable Law

This RFB and the procurement requirements and procedures described in this RFB are subject to applicable law and NTTA's Policy Regarding the Procurement of Goods and Services and Disposition of Personal Property (Procurement Policy), which NTTA adopted under Section 366.033(j) of the Texas Transportation Code. A copy of the Procurement Policy is available on NTTA's website, ntta.org (currently under "Policies" in the "Who We Are" section).

Each Bidder agrees to be bound by the terms, conditions, agreements, and requirements of applicable law, the Procurement Policy and this RFB, including, but not limited to, NTTA's procurement protest procedures. A Bidder's submission of a Bid under this RFB will further signify such agreement.

C. Confidential Information and Texas Public Information Act

Information included in a Bid is subject to the Texas Public Information Act, Chapter 552 of the Texas Government Code (TPIA). Information is not exempt as confidential under TPIA simply because the party submitting the information anticipates or requests that it be kept confidential. Accordingly, a Bidder whose Bid includes information that the Bidder believes in good faith to be confidential or proprietary information or to contain trade secrets of Bidder (Confidential Information) must mark such information accordingly. This marking must be explicit as to the designated information. The Bidder will hold NTTA harmless from any claims arising from the release of Confidential Information not clearly designated as such by the Respondent. Designation does not guarantee the non-release of Confidential Information under the TPIA or as otherwise required by law, but does provide NTTA with a means to review the issues thoroughly and, if justified, request an opinion by the Attorney General's office before releasing Confidential Information requested under the TPIA. If NTTA receives a request for Confidential Information, NTTA shall notify Bidder in writing in accordance with the requirements of the TPIA and will, if reasonably and timely requested by Bidder, ask for a decision from the

Open Records Division of the Office of the Attorney General of the State of Texas regarding whether the information may be excepted from disclosure under the TPIA. In such event, Bidder authorizes NTTA to submit any information contained in the Bid, including information the Bidder has labeled as being Confidential Information, to the Office of the Attorney General. Bidder bears the burden of making the appropriate showing(s) to the satisfaction of the Attorney General's Office.

NTTA, its directors, officers, employees, agents, and attorneys are not liable for any disclosure of any information submitted in a response to this RFB. By submitting a Bid, the Bidder waives any claim against, and releases from liability, NTTA, its directors, officers, employees, agents, and attorneys with respect to disclosure of any information included in the Bid, including information labeled as Confidential Information.

D. **Award Non-Exclusive**

NTTA reserves the right to award a contract to more than one Bidder based on NTTA's consideration of its operational needs. There will be no minimum amount of services awarded any successful Bidder under this RFB. A successful Bidder will assume total responsibility for all deliverables awarded to it whether a subcontractor or other third party produces them in whole or in part. NTTA considers a successful Bidder to be the sole point of contact with regard to contractual matters including payment of all charges resulting from the Contract. A successful Bidder will be fully responsible for any default by a subcontract just as if the successful Bidder itself had defaulted. No subcontractor will be paid directly by NTTA. A successful Bidder will be solely responsible for the performance of the portion of the entire Project awarded to it under this RFB.

E. **Third-Party "Remit To"**

If a Bidder has a third-party "remit-to" company for payment that information must appear on the Bidder's Bid to this RFB. NTTA will not be liable for payments to Bidder sent to the third party designated on the Bidder's Bid.

F. **Tax Exempt Authority**

NTTA is a tax-exempt entity under Sections 151.309, et seq., of the Texas Tax Code.

G. **Incurring Costs**

All costs incurred by a Bidder in preparing the Bid or otherwise in responding to this RFB will be wholly the responsibility of the Bidder. NTTA will not reimburse any Bidders for costs incurred as it relates to participating in the procurement process for this solicitation.

H. **Disclosure of Interested Parties**

Section 2252.908 of the Texas Government Code states that state agencies and other governmental entities, such as NTTA, may not enter into certain contracts with a business entity (defined as a "Contractor" in that section) unless the Contractor

submits a "disclosure of interested parties" (Form 1295) to NTTA at the time the Contractor submits the signed contract to NTTA for execution by NTTA.

If the Contract under this procurement is of a type that requires the Contractor to submit Form 1295, it will be the Contractor's responsibility to submit the form as required by law. The Contractor may obtain information about the Contract from the Solicitation Contact Person identified on the cover page of this RFB. The Contractor must use the online application at the Texas Ethics Commission website to enter the required information on Form 1295 and print a copy of the completed form, which will include a certification of filing that will contain a unique certification number. An authorized agent of the Contractor must sign the printed copy of the form and have the form notarized. The completed Form 1295 with the certification of filing must be delivered to NTTA's Legal Department, Attention: Apryl Flowers, at 5900 West Plano Parkway, Suite 100, Plano, TX 75093, when the contract signed by the Contractor is delivered to NTTA for execution. NTTA will not execute the contract, and no contract will be formed if NTTA has not received the completed Form 1295 with the certification of filing.

NTTA must notify the Texas Ethics Commission of the receipt of the filed Form 1295 with the certification of filing not later than the 30th day after the date the contract binds all parties to the contract. The commission will post the completed Form 1295 to its website within seven business days after receiving notice from NTTA.

Please refer to the information at the Texas Ethics Commission's website for instructions on registering and completing Form 1295.

I. Hold Harmless Agreement

Each Bidder agrees to protect, defend, indemnify, and hold harmless NTTA and its directors, officers, agents, and employees from any and all costs, claims, and damages of every kind and nature (including attorneys' fees) made, rendered, or incurred by or on behalf of every person or corporation whatsoever, including the parties hereto and their employees that may arise, occur, or grow out of any acts, actions, work, or other activity done by the Bidder, its employees, subcontractors, or any independent contractor working under the direction of either the Bidder or subcontractor in connection with the preparation and submission of a Bid.

J. Equal Opportunity

Each Bidder submitting a Bid agrees not to refuse to hire, discharge, promote, demote, or otherwise discriminate in matters of compensation against any person otherwise qualified solely because of race, creed, sex, sexual orientation, gender identity, veteran status, national origin, ancestry, or physical handicap.

K. Disclaimer of Liability

NTTA will NOT hold harmless or indemnify any Bidder for any liability whatsoever.

L. **Licenses/Certificates**

NTTA reserves the right to require documentation that each Bidder is an established business and is abiding by all laws applicable to the Bidder and of the State of Texas.

If Bidder is required by any regulatory agency to maintain professional license or certification to provide any product and/or service solicited under this RFB, NTTA reserves the right to require Bidder to provide documentation of its current license and/or certification before considering its Bid and/or before awarding a Contract.

M. **Notice of Impropriety**

If a Bidder has knowledge of conduct by an NTTA employee in connection with this procurement that the Bidder reasonably believes may be unethical or a violation of law or may create an appearance of impropriety by such person in his or her capacity as an NTTA employee, the Bidder agrees promptly to report such conduct to NTTA's General Counsel, who is NTTA's official Ethics Officer.

N. **Force Majeure**

NTTA will not be liable for defaults or delays due to acts of God or the public enemy, acts or demands of any governmental agency, strikes, fires, floods, accidents, or other unforeseeable causes beyond its control and not due to its fault or negligence.

O. **Procurement Protests**

NTTA encourages Bidders promptly to bring questions and concerns relating to this RFB to NTTA's attention pursuant to the process set forth in the "Instructions to Bidders". Any formal protest relating to this RFB or the Contract award hereunder must be made in writing and submitted to the Senior Director of Procurement Services and Business Diversity no later than five (5) business days after the earlier of the (i) date the protestor was or reasonably should have been aware of the matter giving rise to the protest or (ii) the date the Contract award was made by the NTTA Board of Directors. A "business day" under this RFB is any day NTTA's administrative offices (as distinguished from its Customer Service Center) are open for the regular conduct of NTTA business.

Each protest must comply and will be treated in accordance with NTTA's Procurement Policy, which may be found on NTTA's website, ntta.org (currently under "Policies" in the "Who We Are" section) and is incorporated into this RFB by reference. References in the Procurement Policy to NTTA's Director of Procurement are references to NTTA's Senior Director of Procurement Services and Business Diversity.

Bidders understand and agree that in light of NTTA's operational needs and customer service obligations, the filing of a protest or any legal action challenging any aspect of this RFB or the Contract award thereunder will not prevent NTTA from proceeding with the RFB process, a Contract award thereunder, or utilization of the services requested through this RFB. To the fullest extent allowed by law, Bidders waive any claim for injunctive relief pertaining to this RFB, the contract award, or the

commencement of services hereunder. By submitting a response to this RFB, Bidders unconditionally and irrevocably acknowledge that adequate remedies exist at law, without resort to injunctive or other equitable relief, to fully redress any potential claim arising in connection with this RFB.

VII. APPENDICIES

A. Scope of Work
B. Bid Sheet
C. Required Forms
D. Business Information Form
E. Insurance Requirements
F. Business Diversity Program
G. Form of Contract

APPENDIX A

SCOPE OF WORK

A. Background

The North Texas Tollway Authority Maintenance Department is seeking to contract for facility janitorial services at the Gleneagles Office Complex at 5900 and 5910 West Plano Parkway in Plano, Texas 75093 consists of a single one-story building approximately 79,000 square feet and a single two story building approximately 67,000 square feet.

B. Supplies, Materials and Equipment

Cleaning Supplies - All products are to be above average and should meet manufacturer's specifications, if required. The NTTA reserves the right to change supplies, materials and equipment used at the facility.

1. All cleaning chemicals, supplies and equipment required for cleaning **shall be included in the base price for cleaning.** Cleaning products and equipment used shall be of good quality and repair.

2. After execution of the contract and prior to starting the work, the Contractor shall submit a list of the specific products to be used on the facility. All cleaning agents and disinfectant supplies shall be approved by the NTTA Project Manager.

3. NTTA will provide consumable supplies used by NTTA personnel such as soap, hand sanitizer, paper towels, toilet paper and trash bags. The contractor shall be responsible for ensuring that all dispensers (paper towel, toilet paper, soap, hand sanitizer) located throughout the properties are refilled using products provided by NTTA. Contractor shall communicate with NTTA Project Manager when additional product refills are needed.

4. Some space will be provided on-site for storage of cleaning materials, equipment and machinery. Contractor is to keep lockers, supply storage and slop sink areas clean and tidy.

5. NTTA will not receive shipments of products on behalf of the contractor at NTTA facilities. Contractor shall receive or pickup products at their own facility and transport to the NTTA facilities where products and equipment are to be used.

C. Operational Requirements

1. Standards

   All areas shall be cleaned to an Association of Physical Plant Administrators (APPA) level one or level two as indicated in section K. Precautions shall be taken to avoid damage to existing structures and site work. All work shall be performed in a safe manner to protect the operators, the occupants and any pedestrians.

2. Holidays

   Official Holidays are established each year. For most years, the following holidays have been observed by NTTA: New Year's Day, Martin Luther King Birthday, Memorial Day, Good Friday, Independence Day, Labor Day, Thanksgiving (2) Days and Christmas (2) Days.

3. Special Notification

   The Contractor will notify in writing, ten (10) business days in advance of application to the NTTA Management Staff any chemical that will require special notification to employees and/or site preparation.

4. Scheduling of Janitorial Operations

   Day porters shall be provided for work during normal business hours 7:30am to 4:30pm, 5 days a week, Monday through Friday.

   Morning/ evening / night / weekend staff shall be provided 5 days a week, Sunday through Thursday for areas requiring only 5-day cleaning and 6 nights a week, Sunday through Friday for areas requiring 6-day cleaning.

   These cleaning crews shall be sized based on the bidders' experience to get the work completed in the time desired and to achieve the required results according to the specifications of this RFB.

   All work shall be performed in a manner to cause the least amount of disruption to daily activity. Special cleaning or other work requested by Facilities Manager or designee may be performed during normal work hours if requested; otherwise, it shall occur along with the regularly scheduled evening cleaning. Work being performed on an overtime basis will be at the contractor's sole expense unless prior approval is obtained from the Facilities Manager or designee or is part of the Bid Sheet. Work schedules are to be consistent with all security and safety programs and procedures.

5. Workmanship

   During maintenance operations, all areas shall be kept neat and clean. Precautions shall be taken to avoid damage to existing structures and site work. All work shall be performed in a safe manner to protect the operators, the occupants and any pedestrians.

   Upon completion of janitorial operations, all debris and waste material shall be cleaned up and removed from the site, unless provisions have been granted by the Facility Manager or designee to utilize on site trash receptacles.

   Any damage to any structures or the site caused by the Contractor shall be repaired immediately by the Contractor without charge to the Authority.

D. Personnel

Contractor's personnel shall be neat in appearance consistent with industry standards. Uniforms are mandatory but may consist of company tee-shirts and slacks (same color and style). Contractor's company logo/name must appear on at least one article of clothing (i.e. tee-shirt, jacket, hat, etc.) for each employee so as to make company identification possible. No part of their clothing should have holes or stains. Personnel are required to be appropriately dressed at all times while working on the property. Contractor's employees are to have all OSHA required safety apparel and equipment to wear or to use when working on-site.

1. Project Manager
   a. The Contractor will provide a Project Manager, area manager or other such designated employee who shall be responsible for the management and scheduling of the work to be performed under this Service Agreement.
   b. **The Project Manager must be able to speak, read and write in English**. The Project Manager shall be available during normal working hours and must be able to communicate via e-mail and be able to use a computer to accept and respond to requests and other items related to this contract with representative of the NTTA.
   c. The Project Manager shall be designated by the Contractor as the authority to act on behalf of the Contractor on a day-to-day basis, and shall be able to sign for notices, inspection reports and other correspondence on behalf of the Contractor.
   d. The Project Manager shall have intimate knowledge of the Service Agreement and its various cleaning tasks, equipment and materials.
   e. The Project Manager must be able to properly train, direct and control the cleaning personnel in their individual tasks to meet the terms of the Service Agreement.
   f. The Project Manager must be able to conduct weekly inspections and follow-up programs. The PM shall provide documentation of the inspections to NTTA on a

weekly basis. The Project Manager and/or the Assistant Project Manager shall be accessible to NTTA staff twenty-four hours a day, seven days a week.

g. The Project Manager must provide communication by email, cell phone, and office phone.

2. Supervisors
   a. The Contractor will ensure that all work required under this Service Agreement is satisfactorily supervised by providing the appropriate number of sufficiently trained and qualified competent supervisors.
   b. Each supervisor shall be **capable of verbal and written communication in English** and shall be able to effectively communicate to those under their supervision.
   c. Supervisor shall be available to respond to requests from on-site cleaning personnel.
   d. Supervisor shall make at least **one site visit per day** to verify on-site work is being properly performed.
   e. Supervisors shall be familiar with the terms of the Service Agreement and its various cleaning tasks, equipment and materials.
   f. Supervisors must be able to both properly train and direct the cleaning personnel in their individual tasks and to maintain and control an effective inspection, supervision and follow-up program.
   g. The NTTA reserves the right to request the removal of unsatisfactory supervisors, review resumes and meet supervisory replacements prior to hiring.
   h. The Supervisor must provide communication by email, cell phone, and office phone.

3. On-Site Supervisors or Lead Supervisors
   a. The Contractor will ensure that all work required under this Service Agreement is satisfactorily supervised by providing the appropriate number of sufficiently trained and qualified competent supervisors.
   b. Each supervisor shall be **capable of verbal and written communication in English** and shall be able to effectively communicate to those under their supervision.
   c. On-site supervisors shall be familiar with the various cleaning tasks, equipment and materials required under this contract.
   d. On-site supervisors must be able to direct the cleaning personnel in their individual tasks and to maintain and control an effective inspection, supervision and follow-up program in absence of the Supervisor.
   e. The NTTA reserves the right to request the removal of unsatisfactory supervisors, review resumes and meet supervisory replacements prior to hiring.
   f.

4. Day Porters
    a. The Contractors shall provide 2 full time day porters (at least one male and one female) at each Gleneagles Building (5900 and 5910).
    b. The porters shall be provided for 40 hours per week, 8 hours a day, 5 days a week - Monday through Friday.
    c. These positions are highly visible. It is expected that the personnel in these positions shall bring a high level of cleaning expertise and professionalism to the property.
    d. <u>During periods of absence by a porter due to illness or vacation, a replacement shall be provided by contractor at no additional expense.</u>
    e. Fulltime or onsite supervision of porters is not required. Daily activities shall be overseen by the NTTA personnel.
    f. At least **one day porter** per building per shift shall be **<u>capable of verbal and written communication in English</u>** and shall be able to effectively communicate to NTTA personnel.
    g. General description of services provided by Day Porters:
        i. Their primary purpose is to perform a continuous, rotational cleaning of all toilet rooms, break rooms and public spaces throughout the property, and wipe down of all high traffic surface areas. These areas are to be kept stocked with soap and paper products and kept free from trash and debris.
        ii. General cleaning such as trash and vacuum providing equipment with operating noise level 71 dB or below (Windsor Saber Blade 12)
        iii. Exterior entry ways, sidewalks and stairs are to be swept/blown and cleaned each morning.
        iv. Clean glass entry doors and interior glass windows.
        v. Clean exterior picnic tables and empty cigarette ash urns once per week.
        vi. Assist as needed with spills and special clean up requests.
    h. It is NOT required for the contractor to provide a supervisor or on-site supervisor to direct or otherwise oversee the daily activities of the day porters. These daily activities shall be overseen by designated NTTA personnel. Contractor shall however, designate a person, such as the project manager, as the point of contact to discuss any issues related to the day porters' activities.

E. Infection Control Services

Infection control protocols have been established by NTTA during the response to the pandemic. Qualified vendors must be able to provide these services as needed during the term of the contract in addition to the other standard services detailed in this scope of work. The decision to use or

discontinue these services will be at the discretion of the NTTA based on infection control protocols as established by NTTA leadership.

1. NTTA at times will need additional day porters for infection control, this would be one extra day porter for GE 5900 and 5910, these will be 8 hours each day 8:00 a.m. to 500 p.m. These infection day porters will be responsible for disinfecting all high touch areas of the buildings continuously per work hours at their location. (see bid sheet for this line item bid for infection control day porters)

2. NTTA will at times need certain areas deep cleaned for infection control. These will be cleaned using an approved CDC process typically a misting system. These will be at the request of the Facilities manager and or designee and area needing deep cleaned will identified. Contractor will provide a per visit for these services as needed on the bid document.

F. Use of Premises

The Contractor will meet with Manager's designee to review property rules and regulations. Contractor, at minimum, will adhere to the following:

1. Contractor's equipment may not be stored on property without prior approval of the Manager's designee.

2. Contractor shall not use the premises for any reasons other than for the purposes set forth in the Service Contract.

3. The Contractor shall clean up any liquids that may drip or leak from equipment or may be spilled by the Contractor while servicing the properties.

4. Fuel will not be stored on the properties.

5. Portable fuel containers should meet OSHA standards.

6. Contractor is responsible for the cleaning of any grounds or building facilities offered for the use of the Contractor.

7. The Contractor shall not store materials other than those specifically designated for use on the properties.

G. Work Procedures

1. Notification of Staff

   a. Before the start of contract provide the names of Contractor's employees and employee's qualifications to perform the Scope of Work at each facility prior to execution of this Service Contract. Document should include all employees that may access and NTTA facility including all employees that may serve as an alternate in the instance that a Day Porter or regularly scheduled employee is unable to work.

   b. If employees performing work at the facility change during the term of this Contract, the Manager's designee must be notified in advance of the new employee's name and qualifications prior to working at the facility. Contractor must show all new employees have passed a statewide criminal background check and drug test **before** working on NTTA property.

2. Scheduling of work

   a. All work must be scheduled in advance with the Manager's designee. Have the Manager's designee sign all service reports. Provide the Manager's designee with a copy of all signed service reports. Attach a copy of the service ticket to the invoice, if required.

3. Invoices

   a. Contractor shall submit invoice to NTTA for services on a monthly basis when invoicing for janitorial services.

H. Security

1. Contractor will meet with the Manager's designee at execution of the Service Contract to determine the level of security required on the property for each of Contractor's employees. Contractor will be responsible to properly inform his/her employees that a background check will be performed. Contractor will provide updates to the Facilities Manager or designee at the scheduled meetings regarding new employees and status of security compliance.

2. All personnel must wear visible picture identification issued by the NTTA with their name when on-site and comply with all NTTA facility security awareness policies and training. This requires all personnel to have a personal email address and pass security training before a badge can be issued. Each employee will be required to repeat the security training annually to maintain badge access to NTTA facilities.

I. Award of Services/Locations

1. Qualified responsible bidders must have local operations large enough to support the requested service levels at all facilities included in this solicitation.

2. NTTA reserves the right to award services in this contract in part or as a whole, including awarding different facilities to different contractors based on what is determined to be in the best interest of the NTTA. Bid pricing should not be contingent on award of all locations or services listed.

J. Description of Services

These specifications are written to produce performance-based results. Certain tasks may be adjusted in frequency as long as quality is not compromised, and results are delivered. Conversely, certain tasks may be increased in frequency as the industry standards change or the needs of the client increases.

K. Levels of Cleaning Service

Under the Association of Physical Plant Administrators (APPA) there are five levels of cleaning. Please reference below for standards for each level. At no time shall the level of service fall below a Level 2.

Level 1 – Orderly Spotless

This level establishes cleaning at the highest level. This is show-quality cleaning for the prime facility.

- Floors and base moldings shine and/or are bright and clean; colors are fresh. There is no buildup in corners or along walls.
- All vertical and horizontal surfaces have a freshly cleaned or polished appearance and have no accumulation of dust, dirt, marks, streaks, smudges or fingerprints.
- Washroom and shower tile and fixtures gleam and are odor free. Supplies are adequate.
- Trash containers and pencil sharpeners are empty, clean and odor-free.

Level 2 – Ordinary

This level is level at which cleaning should be maintained. Lower levels for washrooms, changing/locker rooms and similar type facilities are not acceptable.

- Floors and base moldings shine and/or are bright and clean. There is no buildup in corners or along walls, but there can be up to two days' worth of dirt, dust, stains or streaks.
- All vertical and horizontal surfaces are clean, but marks, dust, smudges and fingerprints are noticeable with close observation.

- Washroom and shower tile and fixtures gleam and are odor free. Supplies are adequate.
- Trash containers and pencil sharpeners are empty, clean and odor-free.

Level 3 – Casual

This level reflects the first budget cut, or some other staffing- related inattention problem. It is a lowering of normal expectations. While not totally acceptable, it has yet to reach an unacceptable level of cleanliness.

- Floors are swept clean, but upon observation dust, dirt and stains, as well as a buildup of dirt, dust and/or floor finish in corners and along walls, can be seen.
- There are dull spots and/or matted carpet in walking lanes and streaks and splashes on base molding.
- All vertical and horizontal surfaces have obvious dust, dirt, marks, smudges and fingerprints.
- Lamps all work and all fixtures are clean.
- Trash containers and pencil sharpeners are empty, clean and odor-free.

Level 4 – Moderate

This level reflects the second budget cut, or some other significant dinginess staffing-related problem. Areas are becoming unacceptable. People begin to accept an environment lacking normal cleanliness.

- Floors are swept clean but are dull. Colors are dingy and there is an obvious buildup of dust, dirt and/or floor finish in corners and along walls. Molding is dull and contains streaks and splashes.
- All vertical and horizontal surfaces have conspicuous dust, dirt, smudges, fingerprints and marks that will be difficult to remove.
- Less than 5 percent of lamps are burned out and fixtures are dingy.
- Trash containers and pencil sharpeners have old trash and shavings. They are stained and marked. Trash cans smell sour.

Level 5 – Unkempt Neglect

This is the final and lowest level. The trucking industry would call this “just-in-time cleaning.” The facility is always dirty, with cleaning accomplished at an unacceptable level.

- Floors and carpets are dirty and have visible wear and/or pitting. Colors are faded and dingy and there is a conspicuous buildup of dirt, dust and/or floor finish in corners and along walls. Base molding is dirty, stained and streaked. Gum, stains, dirt dust balls and trash are broadcast.

- All vertical and horizontal surfaces have major accumulations of dust, dirt, smudges and fingerprints, as well as damage. It is evident that no maintenance or cleaning is done on these surfaces.
- More than 5 percent of lamps are burned out and fixtures are dirty with dust balls and flies.
- Trash containers and pencil sharpeners overflow. They are stained and marked. Trash containers smell sour

GLENEAGLES OFFICE COMPLEX					
Cleaning Janitorial Specifications					
		DAILY	**WEEKLY**	**MONTHLY**	**OTHER**
GENERAL NOTES					
1	Turn off lights in all areas after cleaning, unless occupied by Tenant.	**X**			
2	NTTA will notify when special and detail cleaning is needed.				**X** **As required**
3	Carpeted areas are to be vacuumed thoroughly with special attention to areas under desks and cubicles, corners, edges, stair landings and risers.	**X**			
4	Carpeted areas are to be spot cleaned.				**X** **As needed**
5	Carpet areas are to be professionally/thoroughly cleaned semi-annually. High pressure / high temperature water / steam with vacuum extraction are the only cleaning methods allowed without prior approval.				**X** **Semi-Annually in March/ September**
6	Doors, doorframes and wall switches are to be cleaned of all smudges, handprints and marks.	**X**			
7	No items on top of desks, credenzas, office conference tables or office occasional tables are to be touched or moved.	**X**			
8	Glass top tables and glass lamps are to be handled with care and cleaned with glass cleaner.	**X**			

		DAILY	WEEKLY	MONTHLY	OTHER
HIGH DUSTING					
1	Dust surfaces over six (6) feet high.	**X**			
2	Blinds will be dusted as one unit from top to bottom and not stopped at six (6) feet.				**X Annually January**
LOW DUSTING					
1	Item six (6) feet or less will be dusted.	**X**			
2	Low dusting will include, but not be limited to, cleaning of windowsills, chairs, table legs, etc.	**X**			
FLOORING					
1	Floors will be maintained as per manufactures' instructions. Information will be provided to the successful bidder.	**X**			
2	Tile Floors will be stripped, waxed and sealed.				**X Annually August**
3	Galleys and copy rooms will be wet mopped or buffed.	**X**			
4	Cove base will be protected from floor finishes or be replaced by Contractor.	**X**			
5	Wood base will be protected from vacuum cords.	**X**			

		DAILY	WEEKLY	MONTHLY	OTHER
TRASH RECEPTACLES					
1	Trash must be separated in accordance with the Property Recycling Program.	**X**			
2	Empty all recycling bins (separate from trash receptacles) and transport to designated areas. Must provide weekly quantity by way of a photo of the bin showing how much has been disposed of.	**X**			
3	Line all trash receptacles with plastic bags suitable to the size of the container.	**X**			
4	Wash trash receptacles in lunch area.		**X**		
5	Empty exterior trash receptacles.	**X**			
6	Empty trash receptacles on each floor into compactor or recycling containers as appropriate.	**X**			
7	Protect flooring and other surfaces from the trash containers during cleaning operation.	**X**			
8	Trash removal equipment is to be sanitized.			**X**	
9	Stains on carpets due to transporting garbage are to be cleaned at Contractor's expense.	**X**			
PUBLIC AREAS					
1	Spot clean walls.	**X**			
2	Spot clean carpets.	**X**			
3	Clean entry door and elevator thresholds.	**X**			

		DAILY	WEEKLY	MONTHLY	OTHER
EXTERIOR OF BUILDING					
1	Police exterior of building at least 25' from building for paper, cigarette butts and debris.	**X**			
2	Wash exterior glass windows and doors				**X Annually March**
ELEVATORS					
1	Keep at least one elevator operating for passengers.	**X**			
2	Use freight elevator for all cleaning functions.	**X**			
3	Clean all thresholds, hatches, doors, doorframes, railings, cab walls, panels and directional lights on interior of elevator.	**X**			
4	Clean exterior control panels and lights.	**X**			
5	Clean all stainless steel with manufacturer approved stainless steel cleaner.	**X**			
6	Clean light fixtures.			**X**	
RESTROOMS					
1	Wipe down and refill dispensers with products approved for type of metal or plastic.	**X**			
2	Check operation of all dispensers and notify Owner staff of any problems.	**X**			
3	Clean, polish and disinfect mirrors.	**X**			
4	Sinks and countertops shall be cleaned, polished and disinfected -- use manufacturers specs and products to clean specialty sinks/countertops.	**X**			

		DAILY	WEEKLY	MONTHLY	OTHER
5	Commodes and both sides of toilet seats shall be cleaned and disinfected.	**X**			
6	Urinals shall be cleaned and disinfected – use deodorized screens only.	**X**			
7	Clean and disinfect sanitary bins.	**X**			
8	Polish bright work.	**X**			
9	Clean and mop floors using the best method to maintain a safe and sanitary restroom.	**X**			
10	Wash and clean wastebaskets.	**X**			
11	Clean light fixtures.			**X**	
12	Clean supply and intake air grilles.			**X**	
13	Spot clean restroom partitions.	**X**			
14	Polish stainless steel and bright work.		**X**		
15	Clean doors, stall hinges and hardware.	**X**			
16	Flush floor drain with disinfectant.	**X**			
17	Strip and wax floors or clean stone with manufacturers approved products.			**X**	
18	Power scrub all tile flooring and grout lines.				**QTRLY**
19	Provide and routinely refill air fresheners approved by NTTA				**X As Needed**

		DAILY	WEEKLY	MONTHLY	OTHER
LOBBY					
1	Sweep, vacuum, damp mop and spray floors as per manufacturer's specifications.	**X**			
2	Clean glass on exterior and interior doors and other glass dividers.	**X**			
3	Wipe down metal surfaces:				
	- at entry doors	**X**			
	- window mullions	**X**			
	- HVAC vents			**X**	
	- thresholds & kick plates	**X**			
	- handrails	**X**			
4	Dust wall surfaces with approved industry cloth	**X**			
5	Remove smudges and marks from walls with non-damaging cleaner.	**X**			
6	High dust and clean electrical fixtures.	**X**			
7	Vacuum walk-off mats and clean floor beneath them.	**X**			
8	Clean directory boards.	**X**			
9	Remove gum and other foreign matter.	**X**			
10	Dust and polish lobby furniture.	**X**			
11	Power scrub all tile flooring and grout lines.				**QTRLY**
GALLEYS / KITCHENETTES					
1	Clean tables and chairs.	**X**			

2	Clean countertops, stovetop and sinks.	**X**			
		DAILY	**WEEKLY**	**MONTHLY**	**OTHER**
3	Clean and restock paper products.	**X**			
4	Clean exterior and top of refrigerator.	**X**			
5	Clean interior and exterior of microwave.	**X**			
6	Clean countertop condiment, tea and coffee stands.	**X**			
7	Wipe off vending machines.	**X**			
8	Clean and wash trash/recycling containers.		**X**		
9	Clean cabinet fronts and drawers.		**X**		
10	Empty fresh food and freezer sections of refrigerators of all contents. Clean and wipe out interior of both sections.		**X**		
11	Clean interior of conventional range ovens.			**X**	
CONFERENCE ROOMS					
1	Clean and dust tables and credenzas with appropriate and/or manufacturers recommended cleaners.	**X**			
2	Clean white boards.		**X**		
3	Dust light fixtures.		**X**		
OFFICE AND CUBICLES					
1	Empty trash and recycling containers as per Owner procedures and replace plastic liners.	**X**			

		DAILY	WEEKLY	MONTHLY	OTHER
2	Hand dust desktops with treated cloths per manufactures specs all furniture, fixtures, computer monitors, exposed desk and cabinet areas. Contractor is not to move any items on associates' desks, work areas, tables or cabinets. Chairs are to be put back under the desk or cubicle work area.	**X**			
3	Vacuum all carpeted areas including under desk.	**X**			
4	Dust horizontal surfaces.	**X**			
5	Dust windowsills or other shelf areas.	**X**			
6	Clean interior windows. If frosted, use cleaner specially formulated for frosted glass.				**X Annually March**
7	Turn off lights when area is finished cleaning.	**X**			
8	Damp clean trash receptacles.		**X**		
9	Clean and sanitize telephones.		**X**		
10	Spot clean carpets.	**X**			
11	Dust and wipe accessible vinyl cove base.		**X**		
12	Wipe picture frames, chair and table legs.		**X**		
13	Dust blinds.		**X**		
14	Vacuum or brush upholstered furniture.			**X**	
15	Remove fingerprints, smudges and other marks from light switches and door frames.	**X**			
17	Dust and clean all light fixtures.		**X**		
18	Dust vents.		**X**		

19	Damp wipe HVAC vents.			**X**	
		DAILY	**WEEKLY**	**MONTHLY**	**OTHER**
20	Damp wipe window blinds.			**X**	
ARTWORK					
1	Feather dust only. Do not use any chemicals or others equipment or products.		**X**		
DRINKING FOUNTAINS					
1	Clean and sanitize.	**X**			
2	Polish stainless steel.		**X**		
3	Pour cleaner in drain.			**X**	
LIGHT FIXTURES					
1	Clean and damp wipe all building lights fixtures.				**X Annually February**
STAIRWELLS					
1	Vacuum carpeted stairwells.	**X**			
2	Damp mop tile or concrete stairwells.	**X**			
3	Machine scrub or buff stairs and landings.		**X**		
4	Spot clean carpeted, tiled or concrete stairwells.	**X**			
5	Dust railings and risers.	**X**			
6	Damp wipe railings and risers.		**X**		
7	Clean fingerprints and smudges on walls.	**X**			
8	Dust signage, standpipes and other items.		**X**		

		DAILY	WEEKLY	MONTHLY	OTHER
AIR INTAKE AND SUPPLY GRILLS					
1	Clean grills with appropriate cleaner to remove build up and prevent damaging the finish.				**X Semi-Annually April/ October**

APPENDIX B

BID SHEET

(attached as a spreadsheet)

NORTH TEXAS TOLLWAY AUTHORITY
BID SHEET
06283-GEC-00-GS-MA
Janitorial Services - Gleneagles Property

This bid will remain valid for 180 days from bid opening.

GLENEAGLES I - 5900 W. PLANO PARKWAY, PLANO, TX 75093

ITEM No.	DESCRIPTION	TOTAL CLEANING SQ. FT.	COST PER SQ. FT.	HOURLY RATE	MONTHLY COST	YEARLY TOTAL	4 YEARS
1	5 Day Cleaning	75,646				0.00	0.00
2	6 Day Cleaning	3,610				0.00	0.00
3	2 Day Porters (4160 annual hours)	79,256	NA		NA	0.00	0.00
					BID SUBTOTAL	0.00	0.00

GLENEAGLES II - 5910 W. PLANO PARKWAY, PLANO, TX 75093

ITEM No.	DESCRIPTION	TOTAL CLEANING SQ. FT.	COST PER SQ. FT.	HOURLY RATE	MONTHLY COST	YEARLY TOTAL	4 YEARS
4	5 Day Cleaning	41,206				0.00	0.00
5	6 Day Cleaning	10,156				0.00	0.00
6	2 Day Porters (4160 annual hours)	51,362	NA		NA	0.00	0.00
					BID SUBTOTAL	0.00	0.00
						TOTAL BID	$0.00

BID ALTERNATES

DEEP CLEAN INFECTION CONTROL

ITEM No.	DESCRIPTION	TOTAL CLEANING SQ. FT.	PER VISIT	HOURLY RATE	WEEKLY COST	YEARLY TOTAL	4 YEARS
6	Infection control deep clean as needed when requested per call out.	NA		NA	NA	0.00	0.00

ADDITIONAL DAY PORTER PER LOCATION

ITEM No.	DESCRIPTION	TOTAL CLEANING SQ. FT.	COST PER SQ. FT.	HOURLY RATE	WEEKLY COST	YEARLY TOTAL	4 YEARS
7	Additional Infection Control Day Porter (40 hours weekly)	NA	NA		0.00	NA	0.00

COMPANY NAME (PRINTED)

AUTHORIZED AGENT (PRINTED)

SIGNATURE **DATE**

Making changes to this bid sheet may cause your bid to be disqualified.
By signing this Bid Sheet you acknowledge and agree to all addenda related to this solicitation.
Failure to acknowledge any addendum may deem a Bidder non-responsive.
After reviewing the scope and should you opt not to bid on this project, please complete and return the NO BID form.

APPENDIX C

REQUIRED FORMS

The following forms are required to be submitted with your bid. Unless otherwise noted, these forms follow this cover page.

- Bid Sheet *(form attached as Appendix B)*
- Respondent's Agreement Regarding COI Confidentiality Disclosures & Conflict of Interest Questionnaire
- Business Diversity Forms
- Supplemental documentation (*form attached as 06283 Supplemental Document)*

APPENDIX D

BUSINESS INFORMATION FORM

Firm Name: _____

Firm Physical Address: _____

City/State/Postal Code: _____

Firm Mailing Address: _____

City/State/Postal Code: _____

Contact Name: _____

Contact Email Address: _____

Contact Phone Number: _____

Firm Remit-To Address: ☐ (check if same as Mailing Address)

Address: _____

City/State/Postal Code: _____

Contact Name & Phone Number: _____

Email address to use to dispatch purchase orders: _____

Type of Business (check one): ☐ Individual/sole proprietor or single-member LLC ☐ C Corporation ☐ S Corporation ☐ Partnership ☐ Limited Liability Company ☐ Trust/Estate ☐ Other (please specify) _____

State where business was formed: _____

The undersigned affirms that he or she is authorized to submit the firm's response to this solicitation and execute a contract between the firm and the North Texas Tollway Authority. The undersigned further affirms that all of the statements and representations made in the response were made based on reasonable inquiry and are complete and accurate to the best of the knowledge of the undersigned. The NTTA reserves the right to reject any response found to contain false, misleading or inaccurate information. By signing and submitting this response the firm certifies that it understands the terms and conditions of this solicitation and that it agrees with such terms and conditions except those to which it specifically objects in writing.

Authorized Agent: _____ Title: _____

Email: _____

Signature: _____ Date: _____

Rev.4 8/19/22

APPENDIX E

INSURANCE REQUIREMENTS

Contract No.: 06283-GEC-00-GS-MA

Project: Janitorial Services for Gleneagles Facilities

Contractor shall not commence performing under the Agreement until it has furnished NTTA satisfactory proof that Contractor has obtained insurance as described below. Contractor shall submit certificates evidencing the policy coverages and stipulations on forms adopted by the Association for Cooperative Research and Development (ACORD) or other forms acceptable to NTTA. All deductible and retention amounts shall be disclosed on the insurance certificate. Contractor shall provide complete policies or specific coverage forms or endorsements upon request by NTTA.

Contractor shall purchase insurance to cover the obligations and liabilities of Contractor and its agents, employees, and subcontractors that may arise from the Deliverables or Contractor's performance under the Agreement, including without limitation the coverages required below. Contractor shall maintain the required policies in effect until completion of the Term and the expiration of all applicable Texas statutes of limitations or repose. All such insurance shall be provided by companies acceptable to NTTA having an A.M. Best Financial Strength Rating of **A-**. Except for professional liability, cyber risk, crime, and intellectual property insurance (each, as applicable), occurrence-based policies are required.

Required Coverage for all Contracts:

(1)**Workers' Compensation Insurance with statutory limits** in compliance with the laws of the State of Texas (and any other jurisdiction in which work is performed) and **Employer's Liability Insurance** insuring against liability for death, bodily injury, illness, or disease for all employees of Contractor working on the Deliverables, with minimum limits of:

$500,000	Each Accident
$500,000	Disease Policy Limit
$500,000	Disease Each Employee

(2)**Commercial General Liability (CGL) Insurance** insuring against the legal liability of the insureds for accidental death, bodily injury or illness, property damage, personal injury, and advertising injury, which shall include the following specific coverages:

No contractual liability exclusion for liability the insured would have in the absence of this Agreement or for liability assumed in the indemnity provisions of this Agreement;

Premises/operations;

Independent contractors; and

Products and completed operations.

The CGL policy shall have the following minimum limits per occurrence and in the aggregate annually for ongoing work and completed operations:

$500,000	Bodily Injury and Property Damage
$500,000	Products and Completed Operations Aggregate
$500,000	Personal and Advertising Injury
$50,000	Fire Damage

(3) __X___**Business Auto Liability Insurance** with minimum limits of **$500,000** Combined Single Limit for Bodily Injury and/or Property Damage, including Owned, Hired, and Non-Ownership Liability Coverage. This policy shall not contain any limitation with respect to a radius of operation for any vehicle covered, and shall not exclude from the coverage of the policy any vehicle to be used in connection with performance of services under the Agreement.

(4) _____**Umbrella or Excess Liability** with minimum limits of **$1,000,000** per occurrence and in the aggregate annually, as applicable, above the required Employer's Liability, CGL, and Business Auto Liability policies. Coverage shall "follow form" with the underlying policies and continue in force as an underlying insurance in the event of exhaustion of underlying aggregate policy limits.

Additional Required Coverage for Certain Agreements:

In addition to the above coverages, Contractor shall purchase and maintain, in Contractor's own name, the coverages indicated by an "X" below:

(5) _____**Pollution Liability Insurance** with minimum limits of **$2,000,000** per occurrence and in the aggregate annually for claims of bodily injury (including sickness, disease, or death of any person), property damage, or environmental damage, arising from or attributed to the discharge, dispersal, release, or escape of any irritant or contaminant into or upon land, any structure, storage tank, the atmosphere, watercourse, or body of water (including groundwater), whether sudden or gradual, at, on, or emanating from locations associated with the Deliverables (including in the course of transport or delivery) and caused, in whole or in part, by actions or omissions of Contractor or its agents or employees. Coverage shall include on- and off-site cleanup, emergency-response, and remediation costs; damages for loss of use of damaged or destroyed property; and defense costs. The policy shall encompass claims by administrative agencies, governmental entities, and private parties. If this coverage is provided on a "claims made" basis, (i) the retroactive date shall be no later than the effective date of this Agreement, and (ii) coverage shall be maintained for two years after the termination of this Agreement.

(6)_____**Elevator Liability Insurance** with minimum limits of **$1,000,000** per occurrence and in the aggregate annually providing coverage for bodily injury or property damage resulting from ownership, maintenance, or use of elevators, escalators, lifts, or hoists.

(7)_____**Garage Liability Insurance** with minimum limits of **$1,000,000** per occurrence and in the aggregate annually, covering garage operations covered autos, garage operations other than covered autos, and non-owned vehicles in the insured's care, custody, or control.

(8)_____**Garagekeeper Insurance** with minimum limits of **$1,000,000** per occurrence and in the aggregate annually, covering garage operations covered autos, garage operations other than covered autos, and non-owned vehicles in the insured's care, custody, or control.

(9)_____**Errors and Omissions Liability Insurance** insuring against the legal liability of the insureds arising out of any act, error, or omission in the performance of services under the Agreement in the amounts normally carried for its own protection in the practice of providing such services, but in no event less than **$1,000,000** per claim. Any errors and omissions liability policy written on a claims-made basis shall include coverage for an extended reporting period of not less than three years from the termination of the coverage period under the policy or Contractor shall maintain such coverage for a period of three years after the completion of the Term.

(10) _____**Security Guard Dishonesty or Business Services Bond** to compensate NTTA for money or securities lost through the dishonest acts of Contractor or its employee(s), including the dishonest taking of funds or property or other intentional dishonest acts that cause financial loss, with a minimum bond amount of **$100,000**.

(11) _____**Crime Coverage** to compensate NTTA for money, securities, or other property lost through the dishonest or fraudulent acts of Contractor or its employee(s), with minimum limits as follows for each required coverage indicated by an "X" below:

_____ Employee Theft - $1,000,000

_____ Forgery or Alteration - $1,000,000

_____ Premises Coverage - $1,000,000

_____ Outside-the-Premises Coverage - $1,000,000

_____ Transit Coverage - $1,000,000

_____ Computer/Funds Transfer Fraud - $1,000,000

_____ Money Orders/Counterfeit Currency - $1,000,000

_____ Client coverage or Client Property Coverage - $1,000,000

_____ Credit Card Fraud - $1,000,000

(12) _____**Cyber Risk Insurance** appropriate to Contractor's performance under the Agreement, with limits not less than **$5,000,000** per claim and in the aggregate annually.

(a) Coverage shall be sufficiently broad to respond to the duties and obligations undertaken by Contractor in this Agreement and shall include, but not be limited to, claims involving invasion of

privacy violations, information theft, damage to, alteration of, or destruction of electronic information, unauthorized release or disclosure of private information, extortion, technology errors and omissions, network security, and media liability.

(b) The policy shall provide coverage for breach-response costs; regulatory fines and penalties; and credit-monitoring expenses with limits sufficient to respond to these obligations.

(c) The policy shall provide property-damage liability coverage for damage to, alteration of, loss of, or destruction of NTTA's electronic data and/or information in the care, custody, or control of Contractor.

(13) _____**Intellectual Property Insurance** with minimum limits of **$5,000,000** per claim and in the aggregate annually, including coverage for claims involving infringement of intellectual property, copyright, trademark, or trade dress.

If Contractor maintains broader coverage and/or higher limits than the minimums shown above, NTTA requires and shall be entitled to the broader coverage and/or higher limits maintained by Contractor. Any available insurance proceeds in excess of the specified minimum limits of insurance and coverage shall be available to NTTA.

Each of the required policies listed above shall include a waiver of subrogation in favor of NTTA.

Each of the required policies (2) through (5) and (13) listed above shall include NTTA as an additional insured in connection with ongoing and completed operations.

The coverage in each of the required policies (2) through (8), (10) and (12) listed above shall be primary and non-contributory.

Additional Requirements:

Insurance for any subcontractor hired to perform services under the Agreement is the responsibility of Contractor and may be addressed by one of the following options:

(a) Option 1: Contractor shall require each subcontractor to secure and maintain, until the expiration of the applicable Texas statute of limitations or repose, types and amounts of insurance coverages appropriate for the work to be performed by the subcontractor, which coverages shall be subject to approval by NTTA, and provide Contractor, prior to performing any services, Certificates of Insurance evidencing compliance with the above requirement, which Contractor shall provide to NTTA upon request; or

(b) Option 2: Contractor shall take responsibility for the subcontractors' insurance coverage by including each subcontractor as an additional insured under Contractor's insurance coverages.

Cancellation Addendum. Contractor shall request that each insurance carrier issuing policies required under the Agreement provide the following statement by endorsement or otherwise:

"This policy shall not be canceled, materially changed, or non-renewed during the period of coverage without at least thirty (30) days' prior written notice to the North Texas Tollway Authority, 5900 West Plano Parkway, Suite 100, Plano, Texas 75093, Attention: Insurance Program Administrator."

To the extent Contractor is unable to obtain such a statement from an insurer or its agent, Contractor shall provide NTTA prompt written notice of any such cancellation, material change, or non-renewal not more than three (3) business days after the date on which Contractor first becomes aware of such event.

Continuation of Coverage. If, for any reason, the required insurance coverage is not kept in force during the Term, Contractor shall stop all work until it secures the required coverage and provides acceptable documentation of coverage to NTTA. Contractor shall notify NTTA, in writing, by certified mail or hand delivery of any material change in the insurance coverage of Contractor or any subcontractor within ten (10) days of such change.

Payment of Deductibles. Contractor shall be responsible for paying any deductible, self-insured retention, premium, co-insurance, or other payment required by any policy required under this Agreement, included in the event a claim is asserted against NTTA or another additional insured. If any part of any coverage includes self-insurance, a captive insurance company, or a fronting arrangement, the amount so covered must be disclosed on the certificate or in a separate letter from Contractor and shall be the sole responsibility of Contractor. NTTA reserves the right to disapprove this coverage and require alternative coverage consistent with the terms of this Exhibit.

Severability of Interests. All insurance required under this Agreement shall include a Severability of Interests clause that substantially states: Each of the insureds covered by the policy shall have the same protection as if the policy had been issued individually to any insured or named insured.

Certification of Annual Aggregates. For all policies, Contractor shall obtain from the insurer certification that the aggregate amount shown on insurance limits is in full force and has not been diminished as of the commencement of the Term and annually thereafter until the Agreement is fully performed.

No Special Payments. No special payments shall be made for any insurance that Contractor may be required to carry, but all costs thereof shall be included in the price bid for the various items included in the proposal. Bidders shall determine all the kinds and costs of insurance that may be required before submitting their bids and shall submit acceptable evidence of same to NTTA upon request.

No Waiver by NTTA. Neither the approval by NTTA of any insurance supplied by Contractor nor the failure to disapprove that insurance shall relieve Contractor from full responsibility for any liability as set forth herein.

Waiver by Contractor. Contractor hereby waives any and every claim that arises or may arise in its favor against NTTA and its owners, directors, officers, employees, contractors, and agents pursuant to the Agreement that is covered, in whole or in part, by insurance provided or to be provided pursuant to the terms hereof. Such waiver shall be in addition to, and not limitation of, any other waiver or release contained in the Agreement. Inasmuch as such waiver shall preclude

the assignment of any aforesaid claim by way of subrogation or otherwise to an insurance company (or any other person), Contractor hereby agrees immediately to give to each insurance company which has issued policies of insurance pursuant hereto written notice of the terms of such waiver and to cause such insurance policies to be properly endorsed, if necessary, to prevent the invalidation of such insurance coverages by reason of such waiver.

Special Risks or Circumstances. NTTA reserves the right to modify these requirements, including limits, based on the nature of the risk, prior experience, insurer, coverage, or other special circumstances.

APPENDIX F

BUSINESS DIVERSITY PROGRAM

NORTH TEXAS TOLLWAY AUTHORITY
"DISADVANTAGED, MINORITY- AND WOMEN-OWNED
BUSINESS ENTERPRISE PROGRAM"

Professional Services, Consulting and Goods/Services Contracts, and Special Provision for Construction and Maintenance related projects

1. General

The North Texas Tollway Authority (NTTA) is committed to providing contracting opportunities for disadvantaged, minority- and women-owned business enterprises (D/M/WBE). In this regard, NTTA maintains DBE and M/WBE programs in order to facilitate contracting opportunities for these businesses.

The programs are implemented in accordance with the NTTA's Disadvantage, Minority, Women-Owned, and Small Business Enterprises Policy (Diversity Policy) originally adopted by NTTA Board of Directors under Resolution No. 10-19 on January 20, 2010 and any revisions thereafter.

The following document outlines:

- Criteria regarding commercially useful function
- Factors to determine good faith efforts
- Contractor responsibilities
- Monthly reporting and compliance requirements
- Noncompliance enforcement

The Business Diversity Department Contracting and Compliance Manual (CCM) outlines the procedures, provisions and compliance requirements to support and comply with NTTA's Diversity Policy. The CCM is approved and incorporated into the contract by reference for all purposes by NTTA.

The CCM and the Diversity Policy may be obtained online at NTTA website at BusinessDiversityDepartmentContractingComplianceManual.pdf (ntta.org) or by contacting the Business Diversity Department at (214) 461-2007.

2. Commercially useful function criteria

A commercially useful function (CUF) is when the D/M/WBE is responsible for the performance, management and supervision of a distinct element of work in accordance with normal industry practice. The criteria utilized to determine a commercially useful function is set forth in the CCM (page 18).

3. **Factors to determine good faith efforts**
   All prime contractors are required to demonstrate a good faith effort toward achieving a D/M/WBE goal. A good faith effort can be demonstrated by actions that, by their scope, intensity, and appropriateness to the objective, can reasonably be expected to, either individually or collectively, achieve the goal.

   If a prime contractor does not meet the designated goal, it shall nevertheless be eligible for award of the contract if it can demonstrate to NTTA that it has made a good faith effort to meet the goal. The factors that determine if a good faith effort has been met are set forth in the CCM (page 23).

4. **Contractor's responsibilities**
   All responding firms, including D/M/WBE certified firms, must submit documentation regarding all subcontractor utilization and how they will meet or exceed the established goal using certified D/M/WBE firms for this project on the Subcontractor Planning Form.

   This form can be found on-line at https://www.ntta.org/procurement/busdiv/complianceandresources/Pages/default.aspx

   Subcontractor Planning Form, good faith effort documentation, and supporting information must be submitted to the Business Diversity Department for all contracting opportunities in accordance to the CCM. The Subcontractor Planning form must be submitted to NTTA with the Bid.

   Information for construction and maintenance related projects:
   For all construction and maintenance related projects, Subcontractor Planning Form must be submitted to NTTA no later than 5:00 pm on the 14th calendar day after written notification of the conditional award of the contract.

   Additional questions and/or clarification can be obtained by contacting the Director of Business Diversity at businessdiversity@ntta.org. Please copy the Procurement Services Department at bidpurchasing@ntta.org on all correspondence. Subcontractor Planning Form must include a brief description of the type of work to be performed and the dollar value or percentage of utilization of work that will be assigned to the subcontractors, including D/M/WBEs, and must be signed by both the prime contractor and subcontractors.

   All compliance forms may be obtained online at NTTA website at: https://www.ntta.org/procurement/busdiv/complianceandresources/Pages/default.aspx

5. **Monthly reporting and compliance requirements**
   NTTA's diversity compliance software is NTTA's web-based computer system that tracks the monthly subconsultant payment reporting for NTTA contracts. NTTA's diversity compliance system has been fully implemented and replaces any previous subcontractor's payment reporting with a more efficient online reporting process.

.

Prime contractors are required to submit their information into the business diversity contract compliance tracking system by the 15th of each month. Prime contractors will have a designated User ID & password to login to the diversity compliance tracking system via the following link http://ntta.diversitycompliance.com/

6. **Non-compliance enforcement**
   All participants of the D/M/WBE business process must comply with the requirements set forth in the Diversity Policy and are subject to noncompliance enforcement as set forth in the Non-Compliance Enforcement section of the CCM.

NORTH TEXAS TOLLWAY AUTHORITY
"D/M/WBE GOAL"

Contract No: 06283-GEC-00-GS-MA
Project: Janitorial Services for Gleneagles Facilities

The following goal is established for DBE, MBE, and WBE subcontractor participation:

Total D/M/WBE Goal **20% of total contract amount**

DBE = Disadvantaged Business Enterprise
MBE = Minority Business Enterprise
WBE = Women-Owned Business Enterprise

The purpose of the Business Diversity Department (BDD) is to strengthen the North Texas Tollway Authority (NTTA) through the inclusion of Disadvantaged, Minority-, and Women-Owned Enterprises (D/M/WBEs) in the procurement of goods and services. The four major focus areas of the BDD include:

- Expanding outreach efforts and marketing initiatives
- Aligning policies and procedures with the current business environment and industry best practices
- Streamlining compliance and reporting processes
- Building capacity of qualified D/M/WBEs

Please see Section Four the of Business Diversity Program for the link to the Business Diversity Forms.

APPENDIX G

FORM OF CONTRACT

Follows this cover page.

This FORM OF CONTRACT is for reference **only**. **Do not sign and return this form to NTTA**.

This will be an attached document.